

Court No. - 40

Case :- WRIT - C No. - 18884 of 2023

Petitioner :- Than Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Jeet Bahadur Gautam, Ramesh Kumar

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner; Sri Ambrish Shukla, learned Additional Chief Standing Counsel for the State-respondent no. 1 and Sri Pranjal Mehrotra, learned counsel for the contesting-respondent no. 2.
2. By means of the present writ petition, petitioner is assailing the electricity bill notice dated 22.03.2023 issued by the second respondent.
3. Sri Pranjal Mehrotra raised an objection that the matter relates to disputed electricity bill. For redressal of his grievance, the petitioner has got efficacious alternative remedy under Clause 6.5 of the Electricity Supply Code 2005 and as such the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.
4. Once an objection is being raised, we have proceeded to examine the record in question and we are of the considered opinion once the efficacious alternative remedy is available to the petitioner, there is no reason or occasion to bypass the statutory forum and the writ petition is liable to be dismissed on the ground of statutory alternative remedy.
5. In the facts and circumstances, no useful purpose would be served in keeping the writ petition pending and with the consent of the parties, the writ petition is **disposed of** finally with the direction that in case any such application is being preferred by the petitioner within two weeks from today before the second respondent, definitely, the same would be looked into, examined and redressed strictly in accordance with law within six weeks thereafter.

Order Date :- 7.7.2023

A.K.Srivastava